

1. DEFINITIONS

1.1 "Services" means the Halvard inventory and ordering platform, the related mobile applications and any support services that Provider makes available to Customer under this Agreement.

1.2 "Customer Data" means all data, records and files that Customer or its Authorized Users submit to the Services.

1.3 "Authorized User" means an employee or contractor of Customer whom Customer permits to use the Services under a named login.

1.4 "Subscription Term" means the Initial Subscription Term together with every renewal term.

1.5 "Subscription Fee" means the annual fee payable by Customer for the Services, as set out in Section 5.

4. TERM, RENEWAL AND TERMINATION

4.1 The Initial Subscription Term begins on the Effective Date and continues for thirty-six (36) months, and Customer may not terminate this Agreement for convenience at any time during the Initial Subscription Term.

4.2 Upon expiration of the Initial Subscription Term or any renewal term, this Agreement shall automatically renew at the Subscription Fee then in effect, which for the first renewal term shall be no less than \$48,000 per year.

4.3 Each renewal term shall be equal in length to the Initial Subscription Term of thirty-six (36) months.

4.4 To prevent renewal, Customer must deliver written notice of non-renewal by certified mail to Provider's legal department, and that notice must be received no later than ninety (90) days before the end of the then-current term.

4.5 If Customer purchases additional Authorized User seats during any term, the subscription for those seats and the existing Services shall be coterminous and shall renew together for a full renewal term.

4.6 If Customer terminates this Agreement for convenience during any renewal term, Customer shall pay Provider an early termination fee equal to one hundred percent (100%) of the Subscription Fees remaining for the balance of that renewal term.

4.7 The Priority Support add-on renews together with the Services, and Customer can cancel the Priority Support add-on at any time without charge from the billing page of its account.

4.8 Either party may terminate this Agreement upon written notice if the other party materially breaches this Agreement and fails to cure the breach within thirty (30) days after receiving written notice describing it.

4.9 Upon any termination or expiration of this Agreement, Customer's right to access the Services ends and Customer shall pay all Subscription Fees accrued through the effective date of termination.